

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #01	CCRB Case #: 201809207	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 11/04/2018 10:15 PM	Location of Incident: Simpson Street and Fox Street	18 Mo. SOL 12/19/2020	Precinct: 41		
Date/Time CV Reported Mon, 11/05/2018 9:48 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 11/05/2018 9:48 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Wojciech Czech	17253	954684	041 PCT
2. POF Lawrice Crawford	01943	954676	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Pecorella	18446	955308	041 PCT
2. POM Gabriel Cruz	11986	954677	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Lawrice Crawford	Abuse: Police Officer Lawrice Crawford stopped § 87(2)(b)	A . Exonerated
B . POM Wojciech Czech	Abuse: Police Officer Wojciech Czech stopped § 87(2)(b)	B . Exonerated
C . POF Lawrice Crawford	Abuse: Police Officer Lawrice Crawford threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Wojciech Czech	Abuse: Police Officer Wojciech Czech threatened § 87(2)(b) with the use of force.	D . Substantiated
E . POF Lawrice Crawford	Abuse: Police Officer Lawrice Crawford refused to provide her name to § 87(2)(b)	E . Exonerated
F . POF Lawrice Crawford	Abuse: Police Officer Lawrice Crawford refused to provide her shield number to § 87(2)(b)	F . Substantiated
G . POM Wojciech Czech	Abuse: Police Officer Wojciech Czech refused to provide his name to § 87(2)(b)	G . Substantiated
H . POM Wojciech Czech	Abuse: Police Officer Wojciech Czech refused to provide his shield number to § 87(2)(b)	H . Substantiated
I . POF Lawrice Crawford	Abuse: Police Officer Lawrice Crawford issued a summons to § 87(2)(b)	I . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 5, 2018, § 87(2)(b) filed this complaint with the CCRB by phone.

On November 4, 2018, at approximately 10:15 p.m., § 87(2)(b) parked his car within 15 feet of a fire hydrant at the intersection of Simpson Street and Fox Street in the Bronx. Police Officers Lawrice Crawford and Wojciech Czech of the 40th Precinct stopped § 87(2)(b) (**Allegations A-B: Abuse of Authority, exonerated**). PO Crawford threatened to arrest § 87(2)(b) for covering the VIN on his dashboard (**Allegation C: Abuse of Authority, exonerated**). PO Czech threatened § 87(2)(b) with the use of force (**Allegation D: Abuse of Authority, substantiated**). PO Crawford allegedly refused to provide her name upon request (**Allegation E: Abuse of Authority, exonerated**). PO Crawford refused to provide her shield number, and PO Czech refused to provide his name and his shield number (**Allegations F-H: Abuse of Authority, substantiated**). PO Crawford issued a summons to § 87(2)(b) for disorderly conduct (**Allegation I: Abuse of Authority, substantiated**). § 87(2)(g), § 87(4-b)

PO Crawford also issued a parking summons to § 87(2)(b) for parking near a hydrant (BR05).

The investigation obtained cellphone footage from § 87(2)(b) (BR01). The investigation also obtained BWC footage from PO Crawford and from two additional officers who arrived during the incident (BR02-04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Lawrice Crawford stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Wojciech Czech stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Lawrice Crawford threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) parked his vehicle within 15 feet of a fire hydrant. § 87(2)(b) had his § 87(2)(b) vest resting on the dashboard of the car such that it covered the VIN on the dashboard. It is undisputed that PO Crawford and PO Czech stopped § 87(2)(b) that PO Crawford told him that covering the VIN with his vest was an arrestable offense, and that PO Crawford threatened to handcuff § 87(2)(b) if he did not provide his identification. It is also undisputed that the officers did not see § 87(2)(b)'s vehicle obstruct pedestrian or vehicular traffic during the incident.

§ 87(2)(b) provided accounts of the incident in his phone statement and at an in-person interview (BR07, BR08). § 87(2)(g)

§ 87(2)(b) testified that he was standing on the sidewalk next to his car when he saw PO Crawford and PO Czech in an unmarked vehicle (BR08). § 87(2)(b) asked PO Crawford and PO Czech if he could help them. PO Crawford and PO Czech stopped their car and approached § 87(2)(b) who began video recording on his cell phone. PO Crawford told § 87(2)(b) to go back into his car and that she was going to issue him a ticket. § 87(2)(b) refused and told

PO Crawford to leave the ticket on the windshield. PO Crawford said, “Your VIN is covered. That’s a misdemeanor arrest.” § 87(2)(b) reached into his car and moved his § 87(2)(b) vest so that it was no longer covering the VIN. The officers asked § 87(2)(b) for his ID. § 87(2)(b) refused to provide it and asked the officers if he was being detained. PO Czech said that he was being detained because the officers were going to issue him a ticket for covering the VIN.

PO Crawford recounted that § 87(2)(b) was inside his parked vehicle when she first observed him, but that he exited and yelled her and her partner, “Keep driving!” and “You’re harassing me!” PO Crawford explained that, as she approached § 87(2)(b) she only intended to issue him a summons for parking in front of a fire hydrant (BR09). PO Crawford acknowledged at her CCRB interview that it is not required that an officer issue a parking summons to a vehicle’s operator, but she noted that she observed additional offenses when she came closer to the vehicle. Specifically, PO Crawford saw that § 87(2)(b)’s vest was covering his dashboard VIN, and that the rear of his vehicle was parked such that it was blocking a pedestrian curb ramp.

At her CCRB interview, PO Crawford described the act of “obstructing the VIN” as a misdemeanor. She also described it as an unclassified summons, and said that she did not know if it was punishable by imprisonment in jail. She concluded that § 87(2)(b) had committed the act of “obstructing the VIN” because his vest had been blocking it from her view. PO Crawford admitted that she told § 87(2)(b) that he had committed an arrestable offense by covering his VIN.

PO Crawford recounted that she asked § 87(2)(b) for his ID multiple times, and that she told him he was “going to be in cuffs” if he refused to comply. Ultimately, PO Crawford used her discretion and decided not to arrest § 87(2)(b) for covering his VIN.

PO Czech similarly recounted that § 87(2)(b) was sitting in his vehicle when the officers first saw him, though he recalled that the driver’s door was ajar (BR10). He recounted that § 87(2)(b) called out to the officers, “What the fuck are you staring at?” Upon approaching § 87(2)(b) PO Czech intended to either write him a parking summons or arrest him for obstructing the VIN with his vest. At his CCRB interview, PO Czech explained that obstructing a VIN is a misdemeanor punishable by up to one year in jail. He believed that the placement of § 87(2)(b)’s vest such that it covered the dashboard VIN gave him and PO Crawford sufficient grounds to arrest § 87(2)(b). PO Czech confirmed that he and PO Crawford asked § 87(2)(b) for his ID multiple times, and he said they needed his ID to effect an arrest. Either PO Czech or PO Crawford told § 87(2)(b) that he could be arrested for covering the VIN.

§ 87(2)(b)’s cellphone video and PO Crawford’s BWC footage captured the bulk of the incident (BR01-02). The footage confirms that PO Crawford threatened § 87(2)(b) with arrest, that § 87(2)(b) moved his vest so that it no longer covered the VIN, and that § 87(2)(b)’s vehicle did not obstruct any pedestrians or vehicles during the incident.

NYPD Patrol Guide Procedure 209-07 requires that, when an officer issues a summons to an illegally parked vehicle, the officer should place the “service copy” of a Notice of Parking Violation and the orange self-addressed envelope on the windshield of the auto. When the owner,

operator, or person responsible for the vehicle is present, the officer may issue a personal service summons (BR14).

NYPD Patrol Guide Procedure 212-11 states that an officer can only detain a person upon reasonable suspicion that the person has committed, is committing, or is about to commit a felony or Penal Law misdemeanor (BR11).

NY CLS Penal Law §170.70(2) states that a person is guilty of illegal possession of a vehicle identification number when they knowingly possess a vehicle to which the attached vehicle identification number has been destroyed, covered, defaced, altered or otherwise changed. Illegal possession of a vehicle identification number is a class E felony (BR12).

§ 87(2)(g)

Therefore, it is recommended that **Allegations A-B** be closed as **exonerated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **exonerated**.

Allegation (D) Abuse of Authority: Police Officer Wojceich Czech threatened § 87(2)(b) with the use of force.

It is undisputed that § 87(2)(b) asserted during the incident that PO Czech would not put hands on him if he did not have a shield and a firearm, and that he challenged PO Czech to do so without those items. It is also undisputed that PO Czech replied, “Place and time.”

§ 87(2)(b) recounted that he sat in his vehicle and argued with PO Czech while he waited for PO Crawford to write the summonses (BR08). He cursed at PO Czech and told him, “If you didn’t have that badge and gun, you wouldn’t be touching me the way you did.” PO Czech replied, “Time and place.” § 87(2)(b) replied, “You give me a time and place,” but PO Czech did not reply again.

The cellphone video depicts the conversation between § 87(2)(b) and PO Czech (BR01). At the 00:57 minute-mark, § 87(2)(b) asked PO Czech, “Because you’re a cop that means you can put your hands on me?” PO Czech replied, “Exactly. Because I asked you something and now I make you do it.” § 87(2)(b) began cursing and insulting PO Czech, who generally did not reply. At the 05:45 minute-mark, § 87(2)(b) asserted that PO Czech would not touch him if PO Czech did not have a badge and gun. PO Czech replied, “Really?” § 87(2)(b) said, “Come see me without it,” to which PO Czech replied, “Place and time.”

PO Czech testified that § 87(2)(b) used profanity and threatened to beat him up (BR10). PO Czech did not specifically recall what § 87(2)(b) said that was a threat. He could not recall

whether he replied to § 87(2)(b)'s threat. After viewing § 87(2)(b)'s cellphone footage, PO Czech acknowledged that § 87(2)(b) used the phrase, "Come see me without it." PO Czech testified that he did not know what § 87(2)(b) meant when he said, "Come see me without it." PO Czech acknowledged that he replied, "Place and time," but he denied that he intended the remark to be a physical threat, nor did he intend to meet § 87(2)(b) at a later date.

PO Crawford testified that she did not hear this conversation between § 87(2)(b) and PO Czech (BR09).

§ 87(2)(g)
[REDACTED]

NYPD Patrol Guide Procedure 221-01 states that an officer may use force when it is reasonable to ensure the safety of an officer or civilian, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody (BR15).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation D** be closed as **substantiated**.

Allegation (E) Abuse of Authority: Police Officer Lawrice Crawford refused to provide her name to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Lawrice Crawford refused to provide her shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Wojcich Czech refused to provide his name to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Wojcich Czech refused to provide his shield number § 87(2)(b)

It is undisputed that § 87(2)(b) asked PO Crawford and PO Czech for their names and shield numbers at multiple points during the incident. It is further undisputed that neither officer stated his or her name or shield number aloud at any point during the incident.

§ 87(2)(b) recounted that both PO Crawford and PO Czech did not verbally provide their names or shield numbers during the incident (BR08). He also recounted that, at the conclusion of the incident, PO Crawford and PO Czech both told him that their names and shield numbers were listed on the summonses he received. § 87(2)(b) was able to read PO Crawford's name on the summonses, but her shield number was not listed, and neither PO Czech's name nor his shield number appeared on either summons. As a result, § 87(2)(b) visited the 41st Precinct

stationhouse approximately 30 minutes after the incident, where he again asked PO Czech for his name and shield number. PO Czech finally provided § 87(2)(b) his business card at that point.

§ 87(2)(b) s cell phone video confirms that he requested PO Crawford and PO Czech's names and shield numbers twice. This can be found at the 00:40 and 01:13 minute-marks of the video (BR01). The officers told him that he would eventually receive the information. At the end of the incident, § 87(2)(b) asked again for the officers' names and shield numbers, found at the 14:06 minute-mark of the cellphone video. PO Crawford told him that her information was on the summons. § 87(2)(b) asked PO Czech if his name and shield number were on the summons, and PO Czech replied, "It's on the ticket as well."

The summonses issued to § 87(2)(b) note PO Crawford's name but not her shield number (BR05-06). The summonses do not note PO Czech's name or shield number.

PO Crawford acknowledged that she did not immediately provide her name and shield number when requested, but she believed that issuing § 87(2)(b) a summons satisfied his request for her identification (BR09). During her CCRB interview, PO Crawford stated that she believed the summonses listed her name, shield number, and tax ID number. However, she then viewed copies of the summonses and acknowledged that they did not list her shield number. PO Crawford stated that § 87(2)(b) asked PO Czech for his name and shield number at the end of the incident, but she did not know how PO Czech responded.

PO Czech stated that he did not need to provide his name and shield number when § 87(2)(b) first asked because at that point he was not sure if he was going to issue § 87(2)(b) a summons (BR10). PO Czech asserted that issuing a summons to § 87(2)(b) would have satisfied the requirement to provide his name and shield number. PO Czech did not recall how he responded when § 87(2)(b) requested his name and shield number again at the conclusion of the incident. PO Czech confirmed that his name and shield number would not have been on the summonses, as PO Crawford issued them.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g).

NYPD Patrol Guide Procedure 203-09 states that an officer should courteously and clearly state, or otherwise provide, his or her rank, name, shield number, and command to anyone who requests the officer to do so (BR16).

§ 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegation E** be closed as **exonerated**. § 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that **Allegation F** be closed as **substantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations G-H** be closed as **substantiated**.

Allegation (I) Abuse of Authority: Police Officer Lawrice Crawford issued a summons to

§ 87(2)(b)

PO Crawford issued a disorderly conduct summons to § 87(2)(b) for the subsection regarding the obstruction of vehicular or pedestrian traffic (BR06).

At her CCRB interview, PO Crawford stated that § 87(2)(b) did not violate any VTL statute by parking such that he blocked the pedestrian ramp (BR09). It was her understanding that the only statute which applied was the subsection of the disorderly conduct statute which prohibits the blocking of pedestrian traffic. PO Crawford admitted that she did not observe any pedestrians whose passage was inhibited by § 87(2)(b)'s vehicle. PO Crawford confirmed that § 87(2)(b) did not take any other actions during the incident which blocked pedestrian traffic.

PO Czech stated during his interview that under certain circumstances, blocking a pedestrian ramp could be considered disorderly conduct (BR10). In this case, however, PO Czech believed § 87(2)(b) was only committing a parking violation, not disorderly conduct. He did not recall that PO Crawford issued a disorderly conduct summons to § 87(2)(b).

NY CLS Penal Law §240.20(5) states that a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he obstructs vehicular or pedestrian traffic (BR13).

§ 87(2)(g)

Therefore, it is recommended that **Allegation I** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR18).
- Police Officer Lawrice Crawford has been a member of service for six years and has been a subject in six CCRB complaints and 11 allegations, none of which was substantiated. § 87(2)(g)
- Police Officer Wojciech Czech has been a member of service for six years and has been a subject in three CCRB complaints and 10 allegations, none of which was substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of May 6, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR21).

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date